

CHAPTER 24.

An Act to amend section 84A of the Government of India Act with respect to the time for the appointment of a Statutory Commission thereunder. [23rd November 1927.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. In section 84A of the Government of India Act (which relates to the appointment of a statutory commission for the purpose of inquiring into the working of the system of government and other matters), for the words "At the expiration of ten years" there shall be substituted the words "Within ten years."

Time for
appoint-
ment of
statutory
commission.

2.—(1) This Act may be cited as the Government of India (Statutory Commission) Act, 1927.

Short title
and print-
ing.

(2) Subsection (2) of section forty-five of the Government of India Act, 1919 (which relates to the printing of the Government of India Act), shall have effect as if herein re-enacted and in terms made applicable to the amendment of the Government of India Act effected by this Act.

9 & 10 Geo.
c. 101.

CHAPTER 25.

An Act to apply a sum out of the Consolidated Fund to the service of the year ending on the thirty-first day of March, one thousand nine hundred and twenty-eight, and to appropriate the further Supplies granted in this Session of Parliament. [22nd December 1927.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom of Great Britain and Northern Ireland in Parliament assembled,

towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sum hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

GRANT OUT OF CONSOLIDATED FUND.

issue of
3,990,000
out of the
Consoli-
dated Fund.

1. The Treasury may issue out of the Consolidated Fund of the United Kingdom, and apply towards making good the supply granted to His Majesty for the service of the year ending on the thirty-first day of March, one thousand nine hundred and twenty-eight, the sum of three million nine hundred and ninety thousand pounds.

Power for
the Treasury
to borrow.

2.—(1) The Treasury may borrow from any person, by the issue of Treasury Bills or otherwise, and the Bank of England and the Bank of Ireland may advance to the Treasury on the credit of the said sum, any sum or sums not exceeding in the whole three million nine hundred and ninety thousand pounds.

40 & 41 Vict.
c. 2.

(2) The date of payment of any Treasury Bills issued under this section shall be a date not later than the thirty-first day of March, one thousand nine hundred and twenty-eight, and section six of the Treasury Bills Act, 1877 (which relates to the renewal of bills), shall not apply with respect to those bills.

(3) Any money borrowed otherwise than on Treasury Bills shall be repaid, with interest not exceeding five pounds per cent. per annum, out of the growing produce of the Consolidated Fund, at any period not later than the next succeeding quarter to that in which the money was borrowed.

(4) Any money borrowed under this section shall be placed to the credit of the account of the Exchequer, and shall form part of the said Consolidated Fund, and be available in any manner in which such Fund is available.

APPROPRIATION OF GRANTS.

3. All sums granted by this Act out of the said Consolidated Fund towards making good the supply granted to His Majesty, amounting, as appears by Schedule (A), in the aggregate, to the sum of three million nine hundred and ninety thousand pounds, are appropriated for the services and purposes expressed in Schedule (B) annexed hereto.

Appropriation of sums voted for supply services.

The abstract of schedules and schedules annexed hereto, with the notes (if any) to such schedules, shall be deemed to be part of this Act in the same manner as if they had been contained in the body thereof.

In addition to the sums hereby granted out of the Consolidated Fund, there may be applied out of any money directed under section two of the Public Accounts and Charges Act, 1891, to be applied as appropriations in aid of the grants for the services and purposes specified in Schedule (B) annexed hereto the sums respectively set forth in the last column of the said schedule.

54 & 55 Vict.
c. 24.

4.—(1) So long as the aggregate expenditure on military services is not made to exceed the aggregate sums appropriated by this Act and by the Appropriation Act, 1927, for those services, any surplus arising on any vote for those services, either by an excess of the sum realised on account of appropriations in aid of the vote over the sum which may be applied under this Act as appropriations in aid of that vote, or by saving of expenditure on that vote, may, with the sanction of the Treasury, be temporarily applied either in making up any deficiency in the sums realised on account of appropriations in aid of any other vote in the same department, or in defraying expenditure in the same department which is not provided for in the sums appropriated to the service of the department by this Act, and which it may be detrimental to the public service to postpone until provision can be made for it by Parliament in the usual course.

Treasury may, in certain cases of exigency, authorise expenditure unprovided for; provided that the aggregate grants for the army services be not exceeded.
17 & 18
Geo. 5. c. 11.

(2) A statement showing all cases in which the sanction of the Treasury has been given to the temporary application of a surplus under this section, and showing the circumstances under which the sanction of the Treasury has been given, shall be laid before the House of Commons with the appropriation accounts of the

military services for the year, in order that any temporary application of any surplus sanctioned by the Treasury under this section may be submitted for the sanction of Parliament.

Short title. **§ 5.** This Act may be cited for all purposes as the Appropriation (No. 2) Act, 1927.

A B S T R A C T

OF

SCHEDULES (A.) and (B.) to which this
Act refers.

Section 3.

SCHEDULE (A.)

	£	s.	d.
Grants out of the Consolidated Fund - -	3,990,000	0	0

Section 3.

SCHEDULE (B.)—APPROPRIATION OF GRANTS.

1927.

		Sums not exceeding					
		Supply Grants.			Appropriations in Aid.		
		£	s.	d.	£	s.	d.
Part 1.—Army (Supplementary), 1927	- -	3,090,000	0	0	— 75,000	0	0*
Part 2.—Civil (Supplementary), 1927	- -	900,000	0	0	—		
Total	- -	3,990,000	0	0	— 75,000	0	0*

* Deficit.

SCHEDULE (A.)

SCHED. (A.)

GRANTS OUT OF THE CONSOLIDATED FUND.

For the service of the year ending on the
31st day of March 1928 :—

	£	s.	d.
Under this Act - - - - -	3,990,000	0	0
Total - - - - -	3,990,000	0	0

SCHEDULE (B.)—PART 1.

SCHED. (B.)
PART 1.

ARMY (SUPPLEMENTARY), 1927.

SCHEDULE of further AMOUNT granted to meet the excess cost involved in the employment of extra troops in CHINA during the year ending 31st March 1928, not provided for in the ARMY ESTIMATES of the year.

	Sums not exceeding	
	Supply Grants.	Appropriations in Aid.
	£	£
Vote 1.—Pay, &c., of the Army - -	386,000	—
Vote 2.—Territorial Army and Reserve Forces - - - - -	<i>Cr. 48,000</i>	—
Vote 3.—Medical Services - - - -	94,000	—
Vote 5.—Quartering and Movements -	1,334,000	—*98,000
Vote 6.—Supplies, Road Transport and Remounts - - - - -	301,000	15,000
Vote 7.—Clothing - - - - -	116,000	—
Vote 8.—General Stores - - - - -	105,000	8,000
Vote 9.—Warlike and Engineer Technical Stores - - - - -	121,000	—
Vote 10.—Works, Buildings and Lands -	499,000	—
Vote 11.—Miscellaneous Effective Services - - - - -	170,000	—
Vote 12.—War Office - - - - -	12,000	—
	3,090,000	—*75,000

* Deficit.

SCHED. (B.)
PART 2.

SCHEDULE (B.)—PART 2.

CIVIL (SUPPLEMENTARY), 1927.

Schedule of Supplementary Sum granted to defray the Charge for the Service herein particularly mentioned for the Year ending on the 31st day of March 1928, viz. :—

CIVIL.

CLASS VI.

Supply Grants.

Sum not exceeding
£

For a subsidy on sugar and molasses manu- factured from beet grown in Great Britain - - - - -	900,000
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CHAPTER 26.

An Act to amend the provisions of the Criminal Appeal (Scotland) Act, 1926, with regard to the power of the Secretary of State to refer a case, or any point arising therein, to the High Court of Justiciary. [22nd December 1927.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Notwithstanding anything contained in section nineteen of the Criminal Appeal (Scotland) Act, 1926, the power conferred on the Secretary of State by section sixteen of that Act to refer a case, or any point arising therein, to the High Court of Justiciary shall be exerciseable in the case of a person convicted on or before the thirty-first day of October, nineteen hundred and twenty-six, in like manner as if he had been convicted after that date.

2. This Act may be cited as the Criminal Appeal (Scotland) Act, 1927.

Power to
refer cases
of persons
convicted
on or before
31st Octo-
ber 1926.
16 & 17
Geo. 5. c. 15.

Short title.